

Court No. - 3

Case :- WRIT - C No. - 23342 of 2022

Petitioner :- Shakti Kumar Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Sumit Verma,Santosh Kumar Shukla

Counsel for Respondent :- CSC,Mukesh Kumar Singh

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Surendra Singh-I,J.

Heard learned counsel for the petitioner, learned standing counsel for the State-respondents and Sri Mukesh Kumar Singh, learned counsel for the respondent No.2 and 3/Power Distribution Corporation.

This writ petition has been filed praying for the following relief:

"i) issue a writ, order or direction in the nature of CERTIORARI quashing the recovery certificate dated 04.12.2021 (Annexure No.2 to the writ petition) issued by respondent No.3 against father of the petitioner namely, late Virendra Mohan a well as also quash the consequential action taken by respondent authority in pursuance of recovery certificate dated 04.12.2021

ii) issue a writ, order or direction in the nature of mandamus commanding and directing the respondents not to harass the petitioner in pursuance of recovery certificate issued by respondent No.3 against father of the petitioner namely, late Virendra Mohan, dated 04.12.2021."

Sri Mukesh Kumar Singh, learned counsel for the respondent No.2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed off** giving liberty to the petitioner to submit his/ her objection under **Para 6.8 of U.P. Electricity Supply Code, 2005** before the respondent No.3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 18.8.2022

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